

25PSCV04329 25PSCV04329

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-15

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Case Number: 25PSCV04329 Hearing Date: July 15, 2026 Dept: 6

Plaintiff

Lucky Star Marketing's Request for Entry of Default Judgment

Defendants: Fresh &

Flash Market, a California corporation dba Fresh & Flash Market, and Harry

Pu

TENTATIVE RULING

Plaintiff's request for entry of

default judgment is GRANTED in the reduced amount of \$156,134.23. The Court directs Plaintiff to submit a revised proposed

judgment for the Court's review and signature.

BACKGROUND

This

is a business dispute. On December 3, 2025, plaintiff Lucky Star Marketing (Plaintiff) filed this action against defendants Fresh & Flash Market, a California corporation dba Fresh & Flash Market, Harry Pu (erroneously sued as Yaxin Zhu)[1] (collectively, Defendants), and Does 1 to 20, alleging causes of action for breach of contract and common counts.

On

March 16, 2026, Defendant Harry Pu's default was entered. On April 9, 2026, Fresh & Flash Market's default was entered.

On

May 29, 2026, Plaintiff requested entry of default against Defendants.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendants in the total amount of \$158,830.33, including \$131,610.30 in damages, \$20,552.83 in interest, \$5,902.20 in attorney fees, and \$765.00 in costs. The Court finds everything in order, except that Plaintiff's attorney fee request is miscalculated under Local Rule 3.214. The correct amount of attorney fees is \$3,206.10. The Court will GRANT Plaintiff's default judgment request in the reduced amount of \$156,134.23.

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is Plaintiff's request for entry of default judgment is GRANTED in the reduced amount of \$156,134.23. The Court directs Plaintiff to submit a revised proposed judgment for the Court's review and signature.

[1] Plaintiff filed an amendment to complaint on December 10, 2025, providing the correct name. (Amendment to Complaint (12/10/25).)